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CASE #	CASE NAME	HEARING NAME
CVRI2507415	ARAKELIAN vs FCA US LLC	Motion to Compel

Tentative Ruling:

Moving party: Plaintiffs Alexander Arakelian and Healthcare Solution Center Inc.

Responding party: Defendant FCA US LLC

Plaintiffs Alexander Arakelian and Healthcare Solution Center Inc. brings this Song-Beverly action against Defendant FCA US LLC (“Defendant”) regarding a 2021 Jeep Cherokee with transmission, engine, and electrical defects. The operative first amended complaint (“FAC”), filed 8/26/25, asserts: (1) Civ. Code § 1793.2(d); (2) Civ. Code § 1793.2(b); (3) Civ. Code § 1793.2(a)(3); (4) breach of implied warranty; (5) negligent repair (against DCH Chrysler Dodge Jeep Ram Fiat of Temecula); and (6) fraudulent inducement-concealment.

Plaintiffs now move to compel Defendant’s compliance with the initial-disclosure requirements of CCP §871.26 and seek \$2,500 in sanctions. Plaintiffs argue that Defendant’s demurrer was served on 3/20/26 and that Defendant had until 5/19/26 to produce documents. Plaintiffs assert that Defendant did not produce warranty transaction records, service bulletins, field actions, recall records, service manuals, among other VIN-specific records. Plaintiffs also assert that Defendant did not provide verified disclosures.

In opposition, Defendant states that it timely produced over 683 pages of non-confidential materials on 3/31/26, and 1,343 pages of confidential materials on 6/5/26 after entry of the protective order on 4/27/26. Defendant further states that it served verified written disclosures on 6/5/26, which Plaintiffs did not acknowledge. Defendant argues that the motion is moot. Defendant asserts that Plaintiffs’ counsel has failed to meet and confer in good faith. Defendant further argues that §871.26 does not require it to produce verified written disclosures.

There has been no reply.

Analysis

Code of Civil Procedure section 871.26 provides for expedited discovery procedures in lemon law actions. Specifically, section 871.26(b) provides: “Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h).” Subsection (h) requires the Defendant to provide 17 categories of documents to all other parties.

As relevant here, Defendant served its demurrer on 3/20/26. The 60-day period appears to have expired on 5/19/26. Defendant states it served a non-confidential production on 3/31/26, but did not serve the remaining confidential production until 6/5/26. (Cronin Decl., ¶¶ 4, 6.) Thus, the record shows that at least some materials Defendant identifies as responsive were produced *after* the 5/19/26 deadline.

The present record however does not show that Defendant must make the broader VIN-based production that Plaintiffs request. Plaintiffs rely mainly on general descriptions of Defendant's databases and warranty systems. Defendant, however, represents that it has already produced the documents that §871.26 requires, including vehicle-information, warranty claim records, repair orders, bulletin, recall, and manual materials. (Cronin Decl., ¶¶ 4-8.) It also states that "Plaintiffs have not acknowledged FCA['s] supplemental written disclosures and[/]or the correspondence served in response to Plaintiffs' 'meet and confer' letter." (*Id.*, ¶ 8.)

Plaintiffs have not identified a particular required §871.26(h) document that the existing production omits. A generalized assertion that other systems may contain additional information is insufficient. Defendant also ultimately served verified responses and declares that supplemental documents have been produced. **Accordingly, the court deems the motion moot.**

As to sanctions, section 871.26(j)(1) provides, in pertinent part: "Unless the party failing to comply with this section shows **good cause**, . . . a court shall impose . . . [a] two-thousand-five-hundred-dollar (\$2,500) sanction against the defense attorney [], paid within 15 business days for failure to comply with the provisions relating to depositions as prescribed in subdivision (c)." (§ 871.26(j)(1) [emphasis added].) Defendant's use of a protective order may explain its decision not to disclose some materials before entry of the order. But the order was entered on 4/27/26. (Cronin Decl., ¶ 5.) That was about 3 weeks before the 5/19/26 deadline. Defendant did not explain why or provide an excuse for producing the confidential materials on 6/5/26 rather than before the deadline. Defendant has not shown good cause.

The final Assembly Judiciary Committee Report on AB 1755, the enacting legislation for section 871.26, explains that the purpose of the discovery sanctions provision is to ensure "that attorneys faithfully adhere to these new discovery rules," and "that the information most relevant to a lemon law case is disclosed early in the litigation process and without the need to argue costly discovery disputes before the court." (Assem. Com. on Judiciary, Analysis of Assem. Bill No. 1755 (2023-2024 Reg. Sess.) as amended Aug. 30, 2024.) Granting relief from sanctions on these facts would largely frustrate the purpose of section 871.26.

The Court, therefore, imposes the mandatory \$2,500 monetary sanctions against Defendant's counsel under section 871.26(j)(2) for the delayed portion of its production. Sanctions are ordered payable within 15 business days from this order

Summary: Deem the motion moot. Award sanctions against Defendant's counsel in the amount of \$2,500 as mandated by section 871.26(j)(1).